

indeed, the more precaution a person took by increasing the number of the trustees, the greater would be the chance of the abrupt determination of the trust by the death of any one. Even where the trust was to raise the sum of 2000*l.* out of the testator's estate "by sale or otherwise, at the discretion of his *trustees*, who should invest the same in the names of the said trustees upon trust," &c., and one of the two trustees died, and the survivor sold; Vice Chancellor Wood decided that the survivor could make a good title. "I find," he said, "a clear estate in the vendor, and a clear duty to perform. Is it to be said that the sale is a breach of trust because the co-trustee is dead? If I were to lay down such a rule, it would come to this, that wherever an estate was vested in two or more trustees to raise a sum by sale or mortgage, you must come to the Court on the death of one of the trustees" (*e*).

2. Trust survives, though there be a power of appointment of new trustees. — The survivorship of the trust will not be defeated because the settlement contains a power for restoring the original number of trustees by new appointments (*f*): unless there be something in the instrument that specially manifests such an intention (*g*). Even in an Act of Parliament, which declared in very strong terms that the survivors *should* (*h*), and *they were thereby required* to appoint new trustees, the Court said the proviso was analogous to the *common one in settlements, and expressed an [*263] opinion (for the decision was upon another point), that the clause was not imperative, but merely of a directory character (*a*).

sentative of the deceased trustee a party; *Slater v. Wheeler*, 9 Sim. 156.

(*e*) *Lane v. Debenham*, 11 Hare, 188; and see *Hind v. Poole*, 1 K. & J. 383.

(*f*) See *Doe v. Godwin*, 1 D. & R. 259; *Warburton v. Sandys*, 14 Sim. 622; compare *Townsend v. Wilson*, 1 B. & Ald. 608, with *Hall v. Dewes*, Jac. 193; and see *Attorney-General v. Floyer*, 2 Vern. 748; *Jacob v.*

Lucas, 1 Beav. 436; *Attorney-General v. Cuming*, 2 Y. & C. C. C. 139.

(*g*) *Foley v. Wontner*, 2 J. & W. 245; and see *Jacob v. Lucas*, 1 Beav. 436.

(*h*) As to the force of the words "shall and may" in an Act of Parliament, see *Attorney-General v. Lock*, 3 Atk. 166; *Stamper v. Millar*, Id. 212; *Rex v. Flockwood*, 2 Chit. Rep. 252.

(*a*) *Doe v. Godwin*, 1 D. & R. 259.